State Load Despatch Center Delhi vs Central Electricity Regulatory ... on 14 January, 2016

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Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)
I.A. NO. 16 of 2016 IN
DFR NO. 2511 OF 2015

Dated: 14th January, 2016

Present: Hon'ble Mrs. Justice Ranjana P. Desai, Chairperson
Hon'ble Mr. I.J. Kapoor, Technical Member

In the matter of:-

State Load Despatch Center Delhi .... Appellant (s)
Versus
Central Electricity Regulatory Commission & Anr. .... Respondent (s)

Counsel for the Appellant(s) : Ms. Swapna Seshadri
Mr. Ishaan Mukherjee

ORDER

I.A. NO. 16 of 2016 (Application for waiver of court fees) In this Appeal the State Load Despatch Centre has challenged the Order dated 09.10.2015 passed by the Central Electricity Regulatory Commission ("Central Commission") in Petition No. 6/SM/2014, whereby the Central Commission has imposed a penalty of Rs.1 lakh on each of the heads of SLDC Delhi and certain other Respondents under Section 142 of the Electricity Act, 2003 for non-compliance of provisions of Regulations 5.2 (n) and 5.4.2 (e) of the Central Electricity Regulatory Commission (Indian Electricity Grid Code) Regulations, 2010. In this application, the Applicant/Appellant has prayed that the payment of court fee of Rs.1 lakh be waived.

We have heard learned counsel for the Applicant/Appellant. She strenuously contended that the Applicant/Appellant was not a party before the Central Commission and she further submitted that the court fee amounting to Rs.1 lakh is equivalent to the amount of penalty imposed by the Central Commission.

Having heard the learned counsel for the Applicant/Appellant and having read the averments of the interim application, we see no reason to waive the court fee. Accordingly, the application is dismissed. Two weeks time is granted to the Applicant/Appellant to deposit the court fee.

(I.J. Kapoor) (Justice Ranjana P. Desai)
Technical Member Chairperson
ts/dk